

➔ Norwegian version

Act relating to tertiary vocational education (The Vocational Education Act)

Date	LOV-2018-06-08-28
Ministry	Ministry of Education and Research
Entry into force	01.07.2018, 01.01.2019
Last consolidated	LOV-2019-06-21-61 from 01.08.2019
Abbreviated title	The Vocational Education Act
Original title	Lov om høyere yrkesfaglig utdanning (fagskoleloven)

Kapitteloversikt:

- Chapter 1 Objective and scope
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- Chapter 5 The rights and obligations of the students
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Amendment acts incorporated in this text: Act of 22 June 2018 No. 85 (in force 1 August 2018) and Act of 21 June 2019 No. 61 (in force 1 August 2019).

This is an unofficial translation of the Norwegian version of the Act and is provided for information purposes only. Legal authenticity remains with the Norwegian version as published in Norsk Lovtidend. In the event of any inconsistency, the Norwegian version shall prevail.

The translation is provided by the Ministry of Education and Research.

Chapter 1 Objective and scope

Section 1. *Objective*

The objective of this Act is to ensure the provision of high quality tertiary vocational education and satisfactory conditions for students of tertiary vocational education.

Section 2. *Scope of the Act*

The Act applies to accredited tertiary vocational education and activity in Norway. The Act applies to Svalbard and Jan Mayen unless otherwise stipulated by the King. The King may stipulate regulations relating to tertiary vocational education that take local conditions into account. The King may stipulate that the Act will apply fully or partly for tertiary vocational education outside Norway.

Section 3. *The county authority's responsibility for tertiary vocational education*

The county authority must ensure the provision of accredited tertiary vocational education to meet local, regional and national competence requirements.

Chapter 2 Accreditation and approval of tertiary vocational education

Section 4. *Definition and quality assurance of tertiary vocational education*

Tertiary vocational education is vocational education at a level above upper secondary education. Tertiary vocational education provides competence for working life without further training measures.

Tertiary vocational education must have a scope and contents that correspond to between six months and two years of full-time education. The Ministry may, upon application from the board of the tertiary vocational college, decide that tertiary vocational education may be provided which, in content and scope, corresponds to three years of full-time education. The Ministry may issue regulations relating to requirements for content and scope of three-year tertiary vocational educations.

Tertiary vocational colleges must have satisfactory internal quality assurance systems. Student evaluations are to be included in these systems. The Ministry issues regulations relating to the requirements for quality assurance systems and quality assurance work.

Section 5. *Accreditation of tertiary vocational education*

The Norwegian Agency for Quality Assurance in Education (NOKUT) supervises the quality of tertiary vocational education and accredits tertiary vocational education, cf. Chapter 2 of Act of 1 April 2005 No. 15 relating to Universities and University Colleges.

Accreditation is a professional assessment of whether a tertiary vocational college or a tertiary vocational education fulfils the conditions stipulated by the Ministry and NOKUT. Accreditation is a precondition for providing tertiary vocational education. Accredited tertiary vocational education must comply with the Norwegian Qualifications Framework.

Tertiary vocational colleges may on certain conditions be granted accreditation for a subject area. Tertiary vocational colleges that are granted accreditation for a subject area, have the authority to establish and terminate tertiary vocational education within this subject area.

If a tertiary vocational education no longer meets the conditions for accreditation, or a tertiary vocational college no longer meets the conditions for subject area accreditation, NOKUT may withdraw the accreditation. If accreditation is withdrawn, the board of the tertiary vocational college is responsible for ensuring that the affected students are able to complete their ongoing education in a satisfactory manner.

The Ministry may issue regulations concerning

- a) conditions for accreditation of tertiary vocational education
- b) conditions for accreditation of a subject area
- c) procedural rules for NOKUT's accreditation activities.

Section 6. Protection of the designations tertiary vocational education and tertiary vocational college

The designations «fagskoleutdanning» (tertiary vocational education) and «fagskole» (tertiary vocational college) may only be used for educations and colleges that are accredited pursuant to Section 5. Only educations and colleges that have accreditation pursuant to Section 5 may be marketed in a way that conveys the impression they have such accreditation.

The Ministry may by means of an individual decision prohibit the use of a designation or a name that incorrectly gives the impression that an enterprise has accreditation to provide tertiary vocational education, or that may be confused with a designation as mentioned in the first subsection.

On application, the Ministry may permit the use of established compound designations, even though they may be confused with the designations tertiary vocational college or tertiary vocational education.

The Ministry may impose a violation penalty on enterprises that wilfully or negligently

- a) use the designation tertiary vocational college or tertiary vocational education without having the necessary accreditation
- b) market a college or an education in a manner that conveys the incorrect impression that it is accredited as a tertiary vocational college or a tertiary vocational education
- c) violates a prohibition as mentioned in the second subsection against use of designations or names.

The Ministry may issue regulations concerning violation penalties. A final decision to impose a violation penalty is enforceable by execution.

Section 7. General approval of foreign tertiary vocational education

On application from individuals, NOKUT decides whether education from a foreign tertiary vocational college or another vocational education from abroad at the equivalent level, should be granted a general approval so that it, based on its level and scope, can be approved as on a par with accredited tertiary vocational education. The appeals body cannot re-examine NOKUT's assessment of the level and scope of the education in question. The Ministry may issue regulations concerning procedures and opportunity to appeal in cases regarding approval of foreign tertiary vocational education.

Section 8. *Recognition and exemption*

Tertiary vocational colleges must recognise courses passed in other accredited tertiary vocational education that meet the academic requirements for the courses for which approval is being sought, provided the tertiary vocational courses are within the same subject areas or closely related subject areas. Double credit must not be given for the same content. The Ministry may issue regulations concerning credit for courses from other tertiary vocational courses.

Tertiary vocational colleges may, after a professional assessment, also grant exemption for topics based on other documented, relevant education and competence. Such exemption may be granted based on documented prior learning and work experience. The Ministry may issue regulations concerning credit assessments.

A decision concerning recognition of or exemption from courses may be appealed. The appeal will be processed pursuant to Section 20.

Chapter 3 Organisation of tertiary vocational colleges

Section 9. *The board's responsibility*

Each tertiary vocational college must have its own board. Government-run tertiary vocational colleges and tertiary vocational colleges organized as adult education associations must have a board as its supreme governing body.

The board itself must make the decision that in its judgement, it is appropriate to admit new students. This decision must be made before the start of the academic year.

The board must also

- a) ensure that the students receive the education that the tertiary vocational college has accreditation for
- b) ensure that all conditions for any state support have been met
- c) ensure that information submitted to NOKUT, students and prospective students is correct and complete
- d) ensure that necessary information and guidance are given to applicants and students at the college, e.g. regarding school fees, courses offered, application deadlines and admission requirements
- e) determine requirements for teacher qualifications, instructor qualifications and management at the tertiary vocational college
- f) ensure that the activity is conducted in accordance with prevailing acts and regulations, and establish and enforce systematic control measures (internal control) for this. The Ministry may issue regulations concerning internal control according to the first sentence.

The board may delegate its decision-making powers to others at the tertiary vocational college unless it follows from this Act that the board itself must make the decision.

Section 10. *Composition of the board*

The board must have at least seven members. At least two members must have a background from a relevant business or industry. At least one member must have been elected by and from the staff, and at least one member must have been elected by and from the students. If the board has more than ten members, at least two members must have been elected by and from the students and at least two by and from the staff. Personal deputies must be elected for the members who represent the staff and the students. There must be at least one deputy for the members from business and industry, and at least one deputy for the other members. The owner itself appoints, or determines who will appoint, the chairperson of the board.

Section 28 of the Equality and Anti-Discrimination Act applies for election of board members within each constituency.

Board members and deputies are elected for up to four years. Board members and deputies who are elected by and from the students, are elected for one year. Board members and deputies may be re-elected.

Section 11. *Quorum and board meetings*

The board can make decisions when more than half of the members or the equivalent number of deputies are present and cast their votes.

Decisions are made with a general majority of the votes cast unless otherwise determined in this Act. If there is an equal number of votes for and against a proposal, the chairperson has a casting vote.

The board meetings are led by the chairperson. If the chairperson is not present, the board will appoint a person to lead the meeting.

Section 12. *Rector*

A tertiary vocational college must have a rector. The board itself must appoint the rector. A rector must have the necessary academic and management qualifications. The students and staff must be heard before a rector is appointed. The Ministry may issue regulations concerning the requirements for rector qualifications and the procedure when appointing a rector.

If a case needs to be decided before the board can have a meeting, the rector will decide the case. The board may also authorise the rector to decide issues that should not be postponed until the next board meeting.

Section 13. *Organisation*

Private tertiary vocational colleges must be organised as a foundation in accordance with the Foundations Act, or as a limited company according to the Limited Liability Companies Act.

Tertiary vocational colleges which at 1 January 2017 were organised as an adult education association pursuant to the Act relating to Adult Education, may continue as an adult education association.

Tertiary vocational colleges must be registered in the Central Coordinating Register for Legal Entities (Enhetsregisteret).

Section 14. *Student body and student representation*

Students at a tertiary vocational college may establish student bodies to safeguard their interests and promote their views. Students at each department of a tertiary vocational college may establish student bodies in the same way.

The board must facilitate for the student bodies to operate in a satisfactory manner.

The student bodies must be heard in all matters that concern the students.

Students must be represented in all collegiate bodies that are authorised to make decisions at a tertiary vocational college.

Section 14 a. *Student ombudsperson*

The board must ensure that all students at a tertiary vocational college have access to a student ombudsperson.

The student ombudsperson is to advise and help the students in matters concerning their study situation. The student ombudsperson must not be instructed in this work. The student ombudsperson has a duty of secrecy, cf. sections 13 to 13e of the Public Administration Act.

Student ombudspersons may be employed for a fixed term. The fixed term may be four to six years. Pursuant to this provision, no one may be employed for fixed terms for a continuous period of more than twelve years.

The Ministry may issue further regulations concerning student ombudspersons.

Chapter 4 The activity of a tertiary vocational college

Section 15. *Learning environment*

The board has the overall responsibility for the students' learning environment. The board must, in cooperation with the student bodies, facilitate a good and inclusive learning environment. The board must within its area of responsibility work to prevent and stop harassment and sexual harassment, cf. section 13 of the Equality and Anti-Discrimination Act.

If the tertiary vocational college is associated with a student welfare organisation, the board must cooperate with the student welfare organisation in facilitating a good and inclusive learning environment and work to improve student welfare at the college.

The board is responsible for ensuring that the learning environment and the physical and mental working environment is fully satisfactory with regard to the students' health, safety and welfare. In designing the physical working environment the board must, as far as possible and reasonable, ensure

- a) that the premises, access, staircases etc. are designed and equipped for the activities taking place
- b) that the premises have good lighting and sound conditions and a satisfactory indoor climate and air quality
- c) that the premises are well maintained and kept clean and tidy
- d) that the premises are equipped so as to avoid harmful physical strain for the students
- e) that the activities are planned so as to prevent injuries and accidents
- f) that technical devices and equipment are furnished with protective fittings and are maintained properly so that the students are protected from injuries and accidents
- g) that the premises, access, sanitary installations and technical fittings are designed for universal access
- h) that the learning environment is equipped for students of different sexes
- i) that the learning environment is planned according to the principle of universal design

The Ministry may issue regulations concerning requirements for the learning environment.

Students with a disability and students with special needs are entitled to suitable individual adaptation of the learning environment, teaching, teaching materials and examinations, in order to ensure equal training and education opportunities. This right concerns adaptations that do not place a disproportionate burden on the educational institution. When determining this, special attention must be paid to the effect of the adaptations in removing barriers for the students in question, the costs of the adaptations and the institution's resources. Institutions on Svalbard must, as far as is possible and reasonable, adapt study conditions to suit students with special needs. Such measures must not lead to a reduction in the academic requirements for each course of study.

The Norwegian Labour Inspection Authority conducts supervision to ensure that the requirements in the third subsection are met. Chapter 18 of the Working Environment Act applies as far as appropriate. The Ministry may issue regulations concerning supervision of the learning environment.

Section 16. *Admission*

To be admitted to tertiary vocational education, applicants must have completed and passed upper secondary education.

Applicants who are age 23 or older in the year of admission, may be admitted based on equivalent prior learning and work experience. With regard to tertiary vocational courses in creative and performing arts, applicants who meet particular academic requirements defined by the college, may be admitted on the basis of their prior learning and work experience and an entrance test if they are age 19 or older in the year of admission. The Ministry stipulates in regulations which education in creative and performing arts may be comprised by the exemption from the age 23 requirement for admission based on prior learning and work experience, and may also stipulate further academic requirements, including an upper limit for how many may be admitted through the exemption scheme over a certain period.

The Ministry may issue regulations concerning national admission coordination and national admission rules, inter alia concerning admission criteria, ranking of applicants and processing of appeals.

The board itself must provide supplementary regulations concerning admission to their college, with requirements for formal education or equivalent prior learning and work experience.

Section 17. *The content of the education*

The board must draw up a plan for the contents of the education and determine how this plan will be implemented. Provisions must inter alia be laid down for compulsory courses, practical training, forms of assessment and the like.

Credits describe learning outcomes and the nominal length of study. A full academic year is nominally equivalent to 60 credits.

The Ministry may issue regulations concerning

- a) the Norwegian Qualifications Framework
- b) a common system of grades for exams, tests, assessment of papers or other assessments.

Section 18. *Degrees*

The Ministry may stipulate in regulations which degrees a tertiary vocational college may award.

Section 19. *Diplomas*

The tertiary vocational college must issue diplomas for completed tertiary vocational education. NOKUT may issue regulations concerning requirements for the design and contents of the diploma. A student who has not completed his/her tertiary vocational education, may request a transcript of records showing courses and exams that have been passed and other assessments the student has received.

Upon the transition from the designation «tertiary vocational college credits» to «credits», the tertiary vocational colleges must issue new certificates for former students who request it. The college may ask the former students to pay for the cost of issuing the new certificate.

Section 20. *Appeals committees*

A tertiary vocational college must set up a local appeals committee that will consider appeals of individual decisions. The board may decide that the appeals committee must also consider other appeal cases from the students and cases pursuant to Sections 23-27. The authority to make decisions pursuant to Sections 23-27 cannot be delegated to other committees at the college.

The local appeals committee must have five members with personal deputies. The chairperson and his/her deputy must meet the legal requirements for judges in the court of appeal and must not be employed by the tertiary vocational college. Two of the appeals body members must be students.

The appeals committee forms a quorum when the chairperson or his/her deputy and at least two other members or deputies are present.

The local appeals committee's decisions in cases concerning individual decisions made by the tertiary vocational college, cannot be appealed.

The Ministry may issue regulations concerning a national appeals committee for tertiary vocational education which will consider appeals of individual decisions in certain areas and the case management in appeals cases.

Chapter 5 The rights and obligations of the students

Section 21. *Final assessment, examination and examination results*

The board must ensure that the students' knowledge, skills and general competence are tested in an impartial and academically satisfactory manner. The assessment must safeguard the academic standard of the education in question. There must be an external evaluation of the assessment or the assessment schemes.

The board appoints the examiner for examinations, tests, assessments of papers or other work when the result will be included in the certificate or in the grade awarded for the course.

Examination results must be ready within three weeks after an examination, test, paper or other work has been completed, unless there are particular reasons why more time is needed. If examination results cannot be given out within three weeks, the student must be informed of this and also be told when the results can be expected. The board itself may grant exemptions for individual examinations and set a later deadline when it is impossible find to a sufficient number of qualified examiners to do all the grading in three weeks.

In the event of a re-grading pursuant to Sections 22 and 23, one or more examiners may be used. At least one examiner must be external. A grade may be changed in the appellant's favour as well as in his/her disfavour. If a grade has been set on the basis of both a written and an oral test and the grade is changed after a re-grading of the written part of the examination, a new oral test must also be conducted in order to determine the final grade.

The board itself issues regulations on how examinations, tests and other work are to be conducted, including the conditions for re-sitting an examination or test, the opportunity to have a new period of practical training and registration. The board may delegate to a department of the tertiary vocational college to provide further regulations concerning issues that are particular for each exam.

Section 22. *Right to have an explanation and to appeal the grading*

A student is entitled to an explanation for the grading. If the grade is given for an oral examination or an assessment of practical skills, the student must request such an explanation immediately after the grade has been communicated. If the grade is announced electronically, and the student can request an explanation electronically, the student must request such explanation within one week of the grade having been announced. If the grade is announced in some other way, the student must request an explanation within one week from when he/she learnt about the grade, however no later than three weeks after the grade was announced.

The explanation must be given within two weeks after the student's request. If the explanation cannot be given within two weeks, the student must be informed of this and also be told when the explanation can be expected. The explanation must state the general principles used in the assessment and for the specific assessment of the student's performance. The explanation can be given in oral or written form.

If written guidelines have been provided for the assessment, the students must be given access to them once the grade has been set.

A student may submit a written appeal over a grade within three weeks of the examination result being announced. A re-grading will then be conducted. For a re-grading, the examiners will not be informed of the original grade, the examiner's reasons for the grade or the student's reasons for the appeal. If the student has requested an explanation for or appealed concerning procedural errors, the appeal deadline starts from when the student received the explanation, or until the appeal of procedural errors has been finally decided. If a continuous assessment with grading is used, the tertiary vocational college can decide whether the student may appeal after each assessment, or only when the result has been announced.

A student cannot appeal an assessment of an oral performance, of practical training or similar that, due to their nature, cannot be re-tested.

A student cannot appeal the result of a re-grading.

Section 23. *Appeals regarding procedural errors in the examination*

A student who has sat an exam or a test or performed some other work that will be assessed with a grade, may appeal regarding procedural errors within three weeks after the student learnt of or should have learnt of the error. The appeal must be addressed to the tertiary vocational college. The board is the appeals body.

An examination result must be cancelled if errors have been made that may have had an impact on the student's performance or the assessment of the performance. If the error can be corrected by means of a re-grading, this must be done. If the error cannot be corrected by means of a re-grading, a new examination, test, etc. must be conducted with new examiners. A student may appeal the grading pursuant to Section 22.

If a student has requested an explanation for or appealed the grading, the appeal deadline starts running from when the student received the explanation, or until the appeal of the grading has been finally decided.

The tertiary vocational college or the appeals body may decide that a re-grading must be conducted or a new examination, test, etc. must be held if procedural errors have been made that might have had an impact on the performance of one or more students or the assessment of their performance.

Section 24. *Annulment of examination or test*

If a student has used a forged certificate or other forged documents or has acted dishonestly in some other way and therefore has been allowed to sit an exam or a test or perform some other work that is assessed with a grade, the board may annul the result. The board may also annul the approval of courses if a student has been given the right to study on a similarly dishonest basis.

The board may annul the result of an examination, test or similar or the approval of a topic if a student has cheated with intent or gross negligence, or intentionally has attempted to cheat in connection with the examination, test, etc. or while working on the course.

If a student has been granted an exemption or recognition pursuant to Section 8 by using a forged certificate or other forged documents, or has acted dishonestly in some other way, the board may annul the exemption or the recognition.

A student may appeal a decision regarding annulment. The Ministry or the national appeals body for tertiary vocational education is the appeals body, cf. Section 20, fifth subsection.

The opportunity to annul does not become obsolete.

Once the board has made a decision to annul, the student must return any diplomas and transcripts of grades to the tertiary vocational college. A final decision to annul pursuant to the first or second subsection is a particular basis for execution pursuant to Chapter 13 of the Enforcement Act.

Section 25. *Expulsion and exclusion*

If a student, in spite of a written warning from the tertiary vocational college, repeatedly acts in a manner that is highly disruptive of other students' work or the general activity at the college, the board may make a decision that the student must be expelled for up to one year. The rector at the school may make a decision to expel the student if the conditions in Section 12 second subsection are present. Such a decision will be valid until the board may make a final decision in the matter. An expulsion does not cancel the student's right to sit an examination.

If a student, in spite of a written warning from the tertiary vocational college, does not comply with a decision for expulsion, the board may decide to exclude the student from the education for up to one year. An exclusion from a course means that the student no longer has the right to sit examinations.

If a student has endangered someone's life or health, or has acted highly inappropriately towards someone he or she has met in connection with teaching or practical training, the board may decide that the student must be excluded from tertiary vocational education with clinical teaching and practical training for up to three years. The same applies if a student has violated the mandatory duty of confidentiality.

If a student has used a forged certificate, other forged documents or has acted dishonestly in some other way, cf. Section 24 first and third subsection, or has cheated or attempted to cheat, cf. Section 24 second subsection, the board may decide that the student must be excluded from all education at the tertiary vocational college for up to one year. The same applies for a student who has wilfully contributed to cheating.

A decision to expel or exclude a student must be made with at least two-thirds majority. The student has the right to make a statement before a decision is made in a case of expulsion or exclusion, and may also appeal the decision. The Ministry or the national appeals body for tertiary vocational education is the appeals body, cf. Section 20 fifth subsection.

Section 26. *Assessment of suitability*

The Ministry may issue regulations that tertiary vocational colleges must assess whether individual students in certain lines of education are suited for the profession. The students' suitability must be assessed throughout their training.

A certificate for completed and passed education means that the candidate has been assessed as suited for the profession.

The board may decide that a student is not suited for the profession. If such a decision is made, the board may also decide that the student must be excluded from the education for up to five years.

A decision to the effect that a student is not suited for a profession and a decision to exclude a student from a tertiary vocational education because the student is unsuited for the profession, must be made with at least a two-thirds majority. A student is entitled to make a statement before any decision is made in a case of suitability or exclusion. The student may appeal the decision. The Ministry or the national appeals body for tertiary vocational education is the appeals body, cf. Section 20 fifth subsection.

The Ministry may issue regulations concerning assessment criteria and case management in cases of suitability and appeals of decisions regarding suitability assessments.

Section 27. Requirement for police certificate

In courses where the students may be in contact with minors as part of clinical teaching or practical training, the tertiary vocational college may determine that the students must present a police certificate as described in the Section 39, first subsection of the Act relating to police registers. The college may demand a police certificate at admission or during the education.

If particular rules have been stipulated regarding police certificates for certain types of work, these rules apply correspondingly for students who participate in practical training or clinical teaching.

A student who has been convicted of or has accepted a penalty notice for a criminal offence as described in Section 39, first subsection of the Act relating to police registers or in rules concerning required police certificates as mentioned in the second subsection, may be excluded from practical training or clinical teaching. The student can only be excluded if his/her participation in practical training or clinical teaching must be considered inadvisable due to the contact this student will have with people.

A student who is charged with or accused of a criminal offence pursuant to Section 39 first subsection of the Act relating to police registers or in rules concerning required police certificates as mentioned in the second subsection, may be excluded from practical training or clinical teaching until there is a final and conclusive judgement or until the case has been dropped. The student can only be excluded if his/her participation in practical training or clinical teaching must be considered inadvisable due to the contact this student will have with people.

The board decides whether a student must be excluded from clinical teaching or practical training. The decision must be made based on a statement from the tertiary vocational college. A decision to exclude a student pursuant to this subsection must be made with at least a two-thirds majority.

A student may appeal a decision concerning exclusion pursuant to this subsection. The Ministry or the national appeals body for tertiary vocational education is the appeals body, cf. Section 20 fifth subsection.

The Ministry may issue regulations concerning the case management for cases of exclusion due to criminal offences.

Section 28. Right to leave of absence in connection with birth and caring for children

A student who has a child while studying, must be granted leave of absence from the institution during the pregnancy and to care for the child. The student retains his/her status as a student at the tertiary vocational college during his/her leave of absence and is entitled to resume his/her education at the same level as before the leave. A pregnant student is entitled to have her examination postponed if the exam date falls in the period between three weeks before her due date and six weeks after the birth. A student who becomes a father is entitled to have his examination postponed if the exam date is two weeks or less after the birth. The Ministry may issue further provisions concerning the right to have an examination postponed due to a birth. The provisions in Sections 12-1 to 12-5 and Section 12-7 of the Working Environment Act apply as far as appropriate.

The tertiary vocational college must facilitate matters so that students who have leave of absence pursuant to the first subsection, may resume their education as quickly as possible after the leave.

The right to leave of absence and postponed examination applies correspondingly for adoptions.

Chapter 6 Finances and supervision

Section 29. *State support and student fees*

Tertiary vocational colleges may apply to the county municipality for state support.

Tertiary vocational colleges may only demand student fees when no government grant has been given on the condition that the education must be free of charge. The Ministry may issue regulations concerning tertiary vocational colleges' permission to demand student fees.

All private tertiary vocational colleges must use state support and student fees for the accredited education and within the objectives of the law.

Private tertiary vocational colleges that receive state support, must let grants and fees benefit the students. Private tertiary vocational colleges that receive state support are not permitted to distribute profit.

Private tertiary vocational colleges that do not receive state support, must not distribute profit to such an extent that the equity becomes less than 20 per cent of the assets.

The Ministry may issue regulations on the use of state support and student fees, including when winding up.

Section 30. *Agreements with closely related parties*

Private tertiary vocational colleges cannot execute agreements with closely related parties or transfer funds to closely related parties on other terms and conditions than what would have applied between independent parties.

The tertiary vocational college must be able to document that no agreements have been executed in violation of the first subsection.

If the Ministry so requests, parties closely related to private tertiary vocational colleges must allow the Ministry access to documentation on agreements as mentioned in the first subsection.

The Ministry may issue regulations concerning agreements with closely related parties, including what parties are considered closely related, and requirements for documentation.

Section 31. *Supervision*

The Ministry supervises private tertiary vocational colleges.

Private tertiary vocational colleges are obligated to assist in supervision. They must provide information that may be of significance regarding compliance with requirements laid down in or pursuant to this Act. The supervisory authority may require the tertiary vocational college to document and account for such information, for instance by handing over or compiling accounting materials with vouchers, correspondence and board minutes. The supervisory authorities must be given access to the premises used by the tertiary vocational college.

The supervisory authorities may require the auditor and accountant to disclose information pursuant to the second subsection regardless of any statutory or agreed duty of confidentiality.

The Ministry may issue regulations concerning tertiary vocational colleges' obligation to assist during supervision, e.g. for how information should be provided, and for access to the premises of the tertiary vocational college.

Section 32. *Reporting*

Private tertiary vocational colleges must report their accounting information and compiled data on the education they offer, students and staff to the Ministry.

Private tertiary vocational colleges must give the Ministry special notification of mergers, demergers, sale, reorganisation or closing down of the enterprise. They must notify the Ministry before such changes are carried out.

The Ministry may issue regulations concerning private tertiary vocational colleges' obligation to report and notify, concerning what reports and notifications must contain and requirements as to form.

Section 33. *Financial statements and audits*

Private tertiary vocational colleges must submit annual accounts pursuant to Section 1-2 of the Accounting Act and according to the organisational form required by Section 13. The exemption in Section 3-1 first subsection second sentence and second subsection second sentence, cf. Section 1-6 of the Accounting Act does not apply for private tertiary vocational colleges.

Private tertiary vocational colleges must maintain a financial distinction between the accredited parts of the enterprise and non-accredited parts of the enterprise. The financial statements must document that the college maintains such a distinction in the enterprise.

Financial statements for private tertiary vocational colleges must be audited by a state-authorized or registered accountant, cf. Section 3-1 of the Auditors Act.

The Ministry may issue regulations concerning requirements for financial statements, documentation and audits.

Section 34. *Order to correct*

If the Ministry uncovers violations of provisions stipulated in or pursuant to this Act or in the terms for the grant, the Ministry may order the tertiary vocational college to correct this within a given deadline.

Section 35. *Order to repay back the state support*

If state support is used in contravention of provisions stipulated in or pursuant to this Act or in the terms for the grant, the Ministry may demand that the support be repaid. A decision that a government grant must be paid back is enforceable by execution.

Section 36. *Coercive fine*

To ensure that an order given pursuant to Section 34 is followed, the Ministry may decide that the party so ordered must pay a coercive fine to the state. The coercive fine is set as a continuous day fine from the expiry of the deadline stipulated in the order, and until the matter has been corrected.

The Ministry may issue regulations concerning coercive fines, inter alia with regard to their issuance, size, due date, appeal and reduction.

Section 37. *Violation fine*

If a private tertiary vocational college violates the provisions stipulated in or pursuant to this Act, the Ministry may impose a violation fine on the college. A violation fine may be imposed on an enterprise even though no individual person is guilty of wrongdoing.

The size of the violation fine will be determined for each case. A final decision to impose a violation fine is enforceable by execution.

The Ministry may issue regulations concerning violation fines, inter alia with regard to their issuance, the size of the fine set, due date, appeal of a decision concerning a violation fine and reduction.

Section 38. *Withdrawal of accreditation*

If a private tertiary vocational college does not correct serious matters that contravene provisions stipulated in or pursuant to this Act within the deadline pursuant to Section 34, the Ministry may withdraw accreditation of the subject area or the tertiary vocational education.

The Ministry may issue regulations concerning case management regarding withdrawal of accreditation pursuant to the first subsection.

Chapter 7 Concluding provisions

Section 39. *Relationship to the Public Administration Act*

When tertiary vocational colleges handle cases pursuant to this Act, the provisions in Sections 6 to 10 of the Public Administration Act concerning impartiality and Sections 13 to 13 e of the Public Administration Act concerning the duty of secrecy, will apply.

Unless otherwise stipulated, Chapters III to VI and VIII of the Public Administration Act apply for decisions on admission, final assessment, annulment of examination, expulsion, exclusion, assessment of suitability, credit and exemption pursuant to this Act.

The Ministry may issue regulations to the effect that Chapter VI of the Public Administration Act will not apply to decisions from NOKUT concerning accreditation of tertiary vocational education.

Section 40. *Trials*

The Ministry may grant an exemption from the Act and its regulations in connection with pedagogical or organisational trials for a limited period of time.

Section 41. *National certificate and grades portal (Diploma Registry)*

The national certificate and grades portal must ensure truthful information on certificates and grades and prevent the use of forged certificates and grade printouts. The State, represented by the Ministry, is the owner of the portal.

A person's personal identity number, D number and information that can identify the educational institutions which have information about this person's educational performance in their databases, are entered in the portal automatically, whether or not the person in question has started using the portal. Certificates and grades must only be obtained from the educational institution when the person in question has started using the portal. The person in question determines who may be given access to the information in the portal, what information they may be given access to, and for what period.

The administrative body which is responsible for the Diploma Registry, is also the controller of the personal data in the portal. The Ministry may issue regulations concerning the portal, inter alia on what information must be registered, and how the information must be processed.

Section 42. *Reporting to a statistics database concerning tertiary vocational education*

Personal data as mentioned in the second and third subsections may be processed in a database for statistics regarding tertiary vocational education in order to facilitate preparation of statistics and to conduct assessments and research, and for the Ministry's management and responsibility for tertiary vocational education.

For students at tertiary vocational colleges, the following personal data may be processed:

- a) personal identity number
- b) temporary personal identity number
- c) name
- d) citizenship
- e) information regarding their education, such as course progress and grades.

For staff at tertiary vocational colleges, the following personal data may be processed:

- a) personal identity number
- b) type of ID and ID number
- c) name
- d) citizenship
- e) information regarding the employment/position and how the position is financed.

The Ministry may order tertiary vocational colleges to report personal data as mentioned in the second and third subsection to the database for statistics concerning tertiary vocational education. The information may be obtained electronically.

Personal data in the database may be disclosed and collated for research and assessment purposes in accordance with the objective in the first subsection. The information may also be disclosed to other ministries and government bodies which, pursuant to the Personal Data Act, have permission to process such information.

The Ministry is the controller of the database. The Ministry may issue regulations concerning the processing of information in the database.

Section 43. *Prohibition on clothing that partly or fully covers the face*

Students and staff must not wear clothing that partly or fully covers the face in connection with teaching or similar activities, including during excursions, expeditions etc. in conjunction with the educational institution's teaching activity. This prohibition does not apply if such clothing is being worn for reasons of climate, education, health or safety.

A student who, despite a written warning, has worn clothing which partly or fully covers the face in violation of the first subsection, may be expelled for up to one year. If the student, despite a written warning does not comply with a decision concerning expulsion, the student may be excluded from the education for up to one year. A decision on expulsion can be made by the rector or a person authorised by the rector. A decision concerning exclusion can be made by the board itself or by the institution's appeals committee. A decision on expulsion or exclusion may be appealed to the institution's appeals committee or the national appeals body for tertiary vocational education, cf. Section 13.

If a member of staff acts in violation of the prohibition in the first subsection, the staff member must be asked to remove the clothing that covers the face. Repeated violations of the prohibition may lead to dismissal.

Chapter 8 Entry into force and transitional rules

Section 44. *Entry into force and transitional rules*

This Act becomes effective from the date¹ determined by the King.

At the same date, Act of 20 June 2003 No. 56 concerning tertiary vocational education is repealed.

Regulations stipulated pursuant to Act of 20 June 2003 No. 56 concerning tertiary vocational education will remain effective until 31 December 2019 or until the regulations are repealed.

For those who have certificates with tertiary vocational college credits, the right to have a new certificate printed out is abolished on 31 December 2020.

¹ From 1 July 2018 pursuant to the Decree of 8 June 2018 No. 826, except for Section 7 which is effective from 1 Jan 2019.

Section 45. *Amendments to other acts*

From the date when this Act becomes effective, the following amendments are made in the Act of 14 December 2007 no. 116 concerning student welfare organisations: — — —